

STATE OF NEW YORK

8555--C

2025-2026 Regular Sessions

IN ASSEMBLY

May 20, 2025

Introduced by M. of A. PAULIN, SHRESTHA -- read once and referred to the Committee on Agriculture -- recommitted to the Committee on Agriculture in accordance with Assembly Rule 3, sec. 2 -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee -- committee discharged, bill amended, ordered reprinted as amended and recommitted to said committee

AN ACT to amend the agriculture and markets law, in relation to standards of care for animals held in, or being transported by, animal shelters; and to repeal certain provisions of such law relating thereto

The People of the State of New York, represented in Senate and Assembly, do enact as follows:

1 Section 1. Subdivision 6 of section 420 of the agriculture and markets
2 law, as added by chapter 683 of the laws of 2022, is amended to read as
3 follows:
4 6. "Animal shelter" shall mean a public or not-for-profit entity
5 owning, operating, or otherwise maintaining a building, structure, or
6 facility where temporary or permanent housing and care is provided to
7 stray, abandoned, abused, seized, impounded, owner-surrendered or other-
8 wise unwanted animals regardless of whether or not such facility also
9 serves as a personal residence. This includes but is not limited to:
10 facilities owned, operated, or maintained by a duly incorporated society
11 for the prevention of cruelty to animals, duly incorporated humane soci-
12 ety dog or cat protective association, or pound; any person in the
13 employ of, or organization operated by or under contract to a munici-
14 pality to provide care for seized or impounded animals; or any other
15 not-for-profit organization involved in the protection, care, or rehoming
16 of animals. Unless otherwise provided in this article, the term
17 "animal shelter" shall not include the personal residence of any foster

EXPLANATION--Matter in italics (underscored) is new; matter in brackets
[-] is old law to be omitted.

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1 care provider as defined in this section; a facility commonly known as a
2 boarding kennel, where the ownership of the animal is not transferred;
3 any entity licensed as a pet dealer pursuant to article twenty-six-A of
4 this chapter; any duly incorporated animal hospital owned, operated or
5 supervised by a duly licensed veterinarian; ~~[or]~~ any facility where the
6 owner or operator is licensed by the New York state department of envi-
7 ronmental conservation as a nuisance wildlife control agent or wildlife
8 rehabilitator; or any municipality as defined in section one hundred
9 eight of this chapter, that establishes and maintains a pound or shelter
10 pursuant to subdivision one of section one hundred fourteen of this
11 chapter that impounds less than five dogs annually and harbors not more
12 than any two dogs at the same time.

13 § 2. Section 422 of the agriculture and markets law is amended by
14 adding a new subdivision 5 to read as follows:

15 5. The provisions of this section shall not be applicable to any
16 veterinarian or veterinary technician authorized to practice in this
17 state pursuant to article one hundred thirty-five of the education law.

18 § 3. Subdivision 17 of section 425 of the agriculture and markets law
19 is REPEALED.

20 § 4. Subdivision 3 of section 427 of the agriculture and markets law,
21 as added by chapter 683 of the laws of 2022, is amended to read as
22 follows:

23 3. The total number of animals housed in an animal shelter facility
24 ~~[or foster home]~~ shall not exceed the number of housing units available
25 at the facility as required by section four hundred twenty-five of this
26 article; provided, however, that exceptions to the provisions of this
27 subdivision shall be permissible for periods not to exceed forty-five
28 contiguous days in the event of an animal seizure pursuant to article
29 twenty-six of this chapter or a natural disaster where an official
30 declaration of the disaster or emergency has been made.

31 § 5. Subdivision 8 of section 429 of the agriculture and markets law,
32 as added by chapter 683 of the laws of 2022, is amended to read as
33 follows:

34 8. Each animal shelter shall vaccinate each animal in its custody or
35 possession with core vaccines as recommended by national standards and
36 guidelines specific to animal shelters as established, endorsed or
37 approved by the ~~[American Association of Feline Practitioners (AAFP)],~~
38 American Animal Hospital Association (AAHA)[7] or the Association of
39 Shelter Veterinarians (ASV).

40 § 6. Paragraphs (e) and (f) of subdivision 3 of section 431 of the
41 agriculture and markets law, as added by chapter 683 of the laws of
42 2022, are amended to read as follows:

43 (e) Each dog shall be provided with the opportunity to exercise and
44 eliminate at least once every twelve hours while confined to the trans-
45 port vehicle, including load time. Each dog being transported that is
46 less than twelve weeks of age shall be removed from their enclosure and
47 allowed to exercise and eliminate at least every ~~[two]~~ six hours.

48 (f) No dog or cat shall be left unattended in any transport vehicle
49 for more than one hour, ~~[regardless of whether heating, ventilation]~~ and
50 ~~[air conditioning (HVAC)]~~ only if remote temperature monitoring is
51 provided in ~~[such vehicle]~~ the animal compartment of such vehicle.

52 § 7. Paragraph (a) of subdivision 1 of section 109 of the agriculture
53 and markets law, as amended by chapter 420 of the laws of 2025, is
54 amended to read as follows:

55 (a) The owner of any dog reaching the age of four months shall imme-
56 diately make application for a dog license. No license shall be required

1 for any dog which is under the age of four months and which is not at
2 large, or that is residing in [~~a pound or shelter maintained by or under~~
3 ~~contract or agreement with the state or any county, city, town or~~
4 ~~village, duly incorporated society for the prevention of cruelty to~~
5 ~~animals, duly incorporated humane society or duly incorporated dog~~
6 ~~protective association]~~ any animal shelter, as defined by subdivision
7 six of section four hundred twenty of this chapter, any foster care
8 provider, as defined by subdivision twenty-one of section four hundred
9 twenty of this chapter, or any municipality that establishes and main-
10 tains a pound or shelter pursuant to subdivision one of section one
11 hundred fourteen of this article that impounds less than five dogs annu-
12 ally and harbors not more than any two dogs at the same time. Except as
13 otherwise provided in this subdivision, a license shall be issued or
14 renewed for a period of at least one year, provided, that no license
15 shall be issued for a period expiring after the last day of the eleventh
16 month following the expiration date of the current rabies certificate
17 for the dog being licensed. All licenses shall expire on the last day of
18 the last month of the period for which they are issued. In the event an
19 applicant for a license presents, in lieu of a rabies certificate, a
20 statement certified by a licensed veterinarian, as provided in subdivi-
21 sion two of this section, a license shall be issued or renewed for a
22 period of one year from the date of said statement. Any municipality may
23 establish a common renewal date for all such licenses. A license issued
24 by a municipality that has established a common renewal date shall
25 expire no later than the common renewal date prior to the expiration
26 date of the rabies certificate for the dog being licensed.

27 § 8. This act shall take effect immediately.